REPORTABLE (105)

CERTAIN MOYO
v
THE STATE

SUPREME COURT OF ZIMBABWE
MATHONSI JA
HARARE: 29 OCTOBER 2025 & 10 NOVEMBER 2025.

The applicant in person

N. Ngwenya, for the respondent

IN CHAMBERS

MATHONSI JA:

[1] This is an opposed application for leave to appeal, leave to prosecute an appeal in person and for condonation for the late noting of the process of appealing against the judgment of the High Court at Bulawayo (the court *a quo*), delivered on 14 September 2016.

[2] The court *a quo* convicted the applicant of the murder of his own father, one Johnson Siphoko Moyo, who was aged 77 years at the time that he met his tragic death on 3 August 2014 near his homestead at Malisikana Village, Nyabane Area of Plumtree.

[3] Following that conviction, the trial court, having found that the murder was committed in aggravating circumstances but that the applicant's moral blameworthiness was reduced by his fear that his father wanted to consult faith-healers and prophets in Bulawayo over his missing cattle, the trial court settled for the sentence of life imprisonment.

[4] Belatedly finding himself unhappy with both the conviction and sentence, the applicant approached the court *a quo* with an application for condonation for the late noting of an

appeal and for leave to prosecute an appeal in person. The court *a quo* was unmoved and promptly dismissed the application on 12 February 2025.

[5] On 6 October 2025, more than 8 months after his application was dismissed by the court *a quo,* and more than 9 years after he was convicted and sentenced, the applicant saw it fit to file the present application.

[6] His explanation for what is undoubtedly an inordinate delay in taking action is that, at the trial, he was represented by *pro deo* counsel who "went out of the picture" immediately after sentence leaving him to his own devices. Having been abandoned by *pro deo* counsel, he "did not have enough knowledge of law and court procedures" to mount an appeal timeously especially as he erroneously harboured the belief that his case would be reviewed automatically.

[7] He was disabused of these notions and gained knowledge of the ability to proceed self-representing as he has done, "after having interacted with the prison officers and other inmates." As to when that interaction took place the applicant would not say. What is apparent though is that it led to the launch of this application more than, 9 years into the applicant's life imprisonment sentence.

[8] Regarding the prospects of the success of the intended appeal against both conviction and "mostly against sentence," the applicant's main contention is that the trial court erred in relying on the evidence of his 5 year old son, who was 3 years old at the time he witnessed the bludgeoning of his grandfather and in failing to treat that evidence "with caution as to avoid the dangers of convicting a wrong person."

[9] Regarding sentence, even though the trial court acceded to the applicant's request in mitigation that he be sentenced to life imprisonment, the applicant has sharply recanted

that position. While "lodged at Khami Remand Prison in Bulawayo', it has now dawned upon him, presumably following interaction with prison officers and other inmates, that the sentence of life imprisonment is excessive and induces a sentence of shock and disbelief.

[10] I hold that the delay of 9 years in bringing this application is extremely inordinate given that the applicant has stoically been serving his sentence all along without seeing the need to act. I further hold that the explanation he has rendered for his inaction is also unsatisfactory. I also hold that the proposed appeal against both conviction and sentence is demonstrably unarguable and therefore has no prospects of success whatsoever.

[11] While it is an unwritten rule of practise in this jurisdiction for courts of law to treat self-representing litigants with deference in consideration of their lack of legal advice and to generally lean in favour of affording them an opportunity to access the courts, it would be an injudicious exercise of discretion to allow the applicant to pursue what is obviously a doomed appeal. In the process, the precious time of the appeal court, already reeling under the yoke of an ever-increasing backlog, will be wasted.

THE TRIAL

[12] The applicant was arraigned before the court *a quo* on a charge of murder, it being alleged that on 3 August 2014, while aged 26 and residing at his father`s homestead at Malisikwana village, Nyabane area in Plumtree, he attacked his 77 year old father with an axe inflicting injuries from which he immediately died.

[13] The prosecution proved that, in the full view of his then 3 year old son, the applicant called the deceased to a spot between his cattle pen and a hill just as the deceased was about to unpen his cattle and drive them to a grazing area a distance away on his way to

Bulawayo. The deceased had lost 4 herd of cattle under circumstances he suspected the applicant was responsible for their disappearance and intended to proceed to Bulawayo that morning to consult faith healers and prophets on who may have been responsible for the disappearance of the cattle.

[14] When the deceased got to where the applicant was, he immediately attacked the deceased with an axe. Several blows were directed to the upper part of the body, in particular the head, inflicting serious injuries. The prosecution proved that the deceased died of:

> "(a) Severe head injuries
> (b) Multiple skull fractures
> (c) Assault."

[15] It was also established that after the deceased died, his body was ferried in a wheelbarrow and hidden in a cave with stones thrown at the entrance to conceal it. While helplessly lying in that state, the deceased`s body was observed by a witness, Kenneth Maphosa, who was hunting with his dogs, although the witness was dissuaded by his grandmother from immediately reporting his discovery.

[16] Much later, the body was moved from the cave and dumped in a disused well from where it was discovered on 14 January 2016 by Handison Moyo, a witness who was looking for his cattle at Tshaukwa grazing farm. A report was made to the police. This led to the arrest of the applicant. He was implicated by his own son who was present when the deceased was killed and his body hidden in a cave. The son testified as the only eye witness in the killing of his grandfather.

[17] Although the applicant pleaded not guilty to the charge and rendered a defence which the trial court described as "a complete denial" of the offence, he was found guilty of murder aforesaid. In doing so, the trial court found the evidence of state witnesses to be

credible and uncontroverted. On the evidence of the applicant's son, who was 5 years old when he testified, the trial court remarked:

> "It is my view that the evidence of the minor child was given in a clear and detailed manner. The young witness gave a graphic and precise account regarding the commission of the gruesome murder. It was not contradicted in any manner under cross-examination. I find no reason to suggest that the evidence of the minor child was tainted by malice. The evidence was given with such clarity that the events of the fateful day seem to have remained (etched) in the mind of the youthful witness. I am satisfied that the evidence of the youthful witness was credible in all material respects."

[18] Later in its judgment, the trial court observed further that:

> "In the instant case the child gave his testimony in a clear and logical sequence. There is no reason to suggest that his evidence is a result of fantasy or that he was influenced to implicate an innocent man. The demeanor of the youthful witness was that of an innocent child simply reciting and narrating what he had observed. The events were so clear in the mind of the child that he gave graphic details of the events. It is safe to rely on the evidence of the minor child. There is sufficient corroboration in the accounts of Priscilla Moyo, Kenneth Maphosa and Thambo Ncube."

[19] That sealed the fate of the applicant regarding conviction. On sentence the following is what counsel for the applicant submitted in mitigation:

> "We do not have a lot of extenuating circumstances but we would urge the court to consider that the accusations that were being levelled against the accused by the deceased concerning the missing cattle could have put accused in an emotional bad state and could have pushed him to commit the offence. In the circumstances, we also pray that life imprisonment will be appropriate."

[20] Indeed, the trial court agreed with counsel for the applicant. In arriving at an appropriate sentence it discounted the imposition of the death penalty even though it had found that the murder was committed in aggravating circumstances of premeditation and planning. In its view, this was so because:

> "The accused was haunted by the accusations by deceased that he had stolen his cattle, his mental state was somewhat clouded by the fact that deceased had even threatened to consult faith healers and prophets in Bulawayo to establish who had stolen his cattle. For that reason and that reason alone, the moral blameworthiness

> of the accused is lowered to such an extent that ultimate punishment of death should not be imposed in the circumstances of this case."

[21] As I have said, the applicant was sentenced to life imprisonment which sentence he intends to contest on appeal on the ground that it is excessive and induces a sense of shock.

THE LAW

[22] The applicant seeks to note an appeal out of time. A party which finds itself in breach of the rules of court is required to seek condonation for the infringement and, in doing so, such a party must satisfy the requirements for the grant of the indulgence of condonation. See *Chibanda & Ors v City of Harare* SC 83/21 at p. 6 wherein it was stated:

> "It is a trite principle of law that a party who fails to comply with the rules of this Court must apply for condonation and give adequate reasons for his or her failure to comply with the rules."

A judge considering an application for condonation engages in the exercise of judicial discretion which is exercised judiciously having regard to the circumstances of the case.

[23] As succinctly stated by MAKARAU JA, as she then was, in *Bonny view Estate (Pvt) Ltd* v *Zimbabwe Platinum Mines (Pvt) Ltd & Anor* SC 58/18 at p 3:

> "Condonation is an indulgence granted when the court is satisfied that there is good and sufficient cause for condoning the non-compliance with the Rules. Good and sufficient cause is established by considering cumulatively, the extent of the delay, the explanation for the delay and the strength of the applicant's case on appeal, or the prospects of success. This is trite."

Considering that these requirements are examined cumulatively, condonation will be refused if, for example, the proposed appeal has no prospects of success even where the other requirements have been met.

[24] Regarding the grant or refusal of leave to appeal, the position of our law is also settled. What the court has regards to was well articulated by PATEL JA, as he then was, in *Prosecutor General* v *Intratek & Anor* 2019 (3) ZLR 114E where he said:

> "As for the requirements of leave to appeal to be obtained before the right to appeal is exercised, this Court is vested with an essentially gatekeeping function, *viz*, to allow only cases that deserve to be heard on appeal to pass muster. What this entails is an evaluation of the grounds of appeal to be relied upon and their prospects of success at the intended appeal. See *Chikurumhe & Ors* v *Zimbabwe Financial Holdings* SC 10/08; *Chipangura* v *Environmental Management Authority* SC 35/12."

[25] The test of reasonable prospects of success on appeal postulates a dispassionate decision by the court or judge based on the facts and the law to the effect that the appeal court could reasonably arrive at a different conclusion from that of the trial court. See *Smith* v *S* 2012 (1) SACR 567 (SCA). Significantly, leave to appeal is not granted merely because a party has sought it.

CONSIDERATION OF THE APPLICATION

[26] The applicant was convicted and sentenced on 14 September 2016. He has been serving a life imprisonment term for slightly more than 9 years. He was jolted into action to seek to the challenge his conviction and sentence by prison officers and other inmates at Khami Prison. This is hardly a good reason for seeking to appeal a judgment. The explanation for failure to act is therefore tenuous indeed especially where the delay is extremely inordinate as in this case.

[27] Notwithstanding the finding on the extent and explanation for the delay, because the requirements for condonation and leave to appeal are considered cumulatively, it is possible to still find in favour of the applicant where the intended appeal enjoys good prospects of success. This is more so regard being had that, where leave is sought,

prospects of success are an important consideration. The Court may lean in favour of granting leave where there is merit in the intended appeal.

[28] The applicant's fate at the trial was sealed by his very own son who testified at the age of 5 years about how he witnessed his father bludgeon his grandfather in the morning of 3 August 2014. Testifying in the Victim Friendly Court, the little boy told of how:

> "He was axed. He had several missing beasts. He was struck on his back, on his stomach, his left knee, his hips and on both knees, on his shoulder and elbow. His neck was cut."

[29] The witness went on to describe how his father placed the body in a wheelbarrow and hid it in a cave and thereafter cleaned the wheelbarrow of blood stains. The trial court embraced the evidence of the eye-witness as well as that of other state witnesses. It considered that the eye-witness was a child but properly warned itself against the dangers of reliance on such evidence. Having discounted all possibilities of false incrimination, the trial court convicted the applicant of the crime of murder.

[30] At the hearing of the application, the applicant's attention was drawn to the fact that the evidence of his son was not challenged at all under cross-examination. In fact, the cross examination was legendary, not by its contestation of the eye-witness's testimony, but by its brevity. Only two questions were put to the witness by the applicant's counsel. The applicant could only say that he found himself in an invidious situation, between a rock and a hard place, because the deceased was his father and the key witness was his son, something not helpful at all.

[31] What this boils down to is that the applicant intends to appeal the judgment of the court *a quo* on conviction arrived at on the basis of uncontested evidence led by the prosecution. Considering that an appeal is determined on the four-corners of the record,

there is nothing whatsoever that may move the appellate court to interfere with the conviction.

[32] Regarding the sentence of life imprisonment imposed on the applicant by the trial court, I have already cited at para 19 above what was said on behalf of the applicant in mitigation. Clearly it is the applicant who prayed for the imposition of a life sentence and the trial court obliged. When this fact was drawn to the applicant's attention, he could only glibly state that at the time of the trial he was very young, it was his first time to appear in court and he was not aware of court procedures. Never mind that he committed the offence at the age of 26 and was tried at the age of 28, not so young after all.

[33] Unfortunately that will not change what is on record which, if granted leave, the appellate court will work with. What the applicant is attempting to do is to withdraw an admission. I will not go into the requirements regulating the withdrawal of an admission as it suffices to make the point that sentencing is pre-eminently the discretion of the trial court. An appellate court will not lightly interfere with that discretion. It will only do so where there is a misdirection on the part of the sentencing court, like where it imposed a sentence beyond its jurisdiction or one not provided for in the law.

This Court stated in *S* v *Munakamwe* SC 121/23 at p 7 that:

> "As to when an appeal court can interfere with the discretion of a trial court, it is also settled that interference can only be done where the sentence is disturbingly inappropriate or where the discretion has been exercised capriciously or upon a wrong principle."

[34] Prior to the amendment of s 47 (2) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] in June 2016, it provided that a person convicted of murder was liable to be sentenced to death or, where there were extenuating circumstances, to life imprisonment or any shorter period. The offence was committed on 3 August 2014 when

this provision applied, meaning that it was within the sentencing discretion of the trial court to impose the sentence that it imposed. Adopting the reasoning in *Chikiwa* v *The State* CCZ 05/25 and *Damota* v *The State* SC 50/25, the applicant suffered no prejudice by the imposition of the sentence.

[35] I conclude therefore that the intended appeal against sentence, just like the one against conviction, has no prospects of success. The appellate court would not interfere with the sentence of life imprisonment.

DISPOSITION

[36] The inevitable conclusion is that, on the whole, the application is completely without merit. It ought to fail. This is a case in which, in the discharge of my gatekeeping duties, the gate to the appellate court should be closed against the applicant in order to protect the court from a doomed appeal. In compliance with the proviso to r50 (7) of this Court's rules the concurrence of two other judges has been sought for the dismissal of the application.

[37] In the result, it be and is hereby ordered that:

"The application is dismissed."

GUVAVA JA : I agree

KUDYA JA : I agree

National Prosecuting Authority, respondent's legal practitioners.